



CLEARWATER COUNTY COURT SYSTEM

Sixth Judicial Circuit | Office of the Clerk of the Circuit Court
Criminal Justice Center, 14250 Court Street, Clearwater

FORM AP-03
FILED BY THE BRIEFING PARTY
REV. 08/2026

IN THE APPELLATE COURT OF FLORIDA
DIVISION OF CRIMINAL AND CIVIL APPEALS

APPELLATE BRIEF

Initial, answer, or reply brief - the written argument on appeal

APPELLANT	CASE NUMBER (UCN)
VS.	e.g. A-2026-000123 (APPELLATE COURT)
APPELLEE	DIVISION e.g. Criminal Appeals JUDGE e.g. Hon. Hollis T. Marren
Full name of party e.g. Marcus D. Reeves	Divisions: Criminal Appeals Civil Appeals Traffic Appeals

HOW TO USE THIS FORM

The brief is where you actually win or lose an appeal. Follow the order of the sections below - appellate courts read them in this sequence and a brief that skips the standard of review is usually rejected. Cite the record for every fact you assert. Every box is blank and ready to type in; anything you type appears in black. The small grey "e.g." notes beside each label are only examples of what belongs there.

BRIEF INFORMATION

FILED BY	e.g. Defence counsel	PARTY REPRESENTED	e.g. Defendant	BAR NO.	DATE DUE	e.g. 12/06/26	DATE FILED	e.g. 08/18/26

TYPE OF BRIEF

☐	INITIAL BRIEF OF THE APPELLANT
	The opening argument explaining why the decision below was wrong.
☐	ANSWER BRIEF OF THE APPELLEE
	The response defending the decision below.
☐	REPLY BRIEF OF THE APPELLANT
	Limited to answering points raised in the answer brief. No new issues.
☐	BRIEF ON JURISDICTION
	Filed in the Supreme Court to establish the basis for review.
☐	AMICUS CURIAE BRIEF
	Filed by a non-party with the Court's permission.

STATEMENT OF THE CASE AND FACTS

THE PROCEDURAL HISTORY AND THE FACTS, STATED FAIRLY, WITH A RECORD CITATION AFTER EVERY SENTENCE e.g. The defendant was arrested on 14 August 2026 and charged by

SUMMARY OF THE ARGUMENT

YOUR WHOLE ARGUMENT COMPRESSED INTO A FEW SHORT PARAGRAPHS. MANY JUDGES READ ONLY THIS BEFORE ARGUMENT. e.g. A traffic stop must be supported by

ARGUMENT

ISSUE I	
ISSUE STATEMENT	STANDARD OF REVIEW
e.g. Whether the stop was supported by reasonable suspicion	e.g. De novo

ARGUMENT ON ISSUE I
RULE, APPLICATION TO THE RECORD, AND WHY THE OUTCOME SHOULD CHANGE
e.g. A traffic stop must be supported by reasonable suspicion of a specific violation.

ISSUE II	
ISSUE STATEMENT	STANDARD OF REVIEW
e.g. Whether the stop was supported by reasonable suspicion	e.g. De novo

ARGUMENT ON ISSUE II
e.g. A traffic stop must be supported by reasonable suspicion of a specific violation.

ISSUE III	
ISSUE STATEMENT	STANDARD OF REVIEW
e.g. Whether the stop was supported by reasonable suspicion	e.g. De novo

ARGUMENT ON ISSUE III
e.g. A traffic stop must be supported by reasonable suspicion of a specific violation.

CONCLUSION
STATE PRECISELY WHAT YOU WANT THE COURT TO DO
e.g. Type your statement here.

STANDARDS OF REVIEW RELIED ON	
☐ De novo - pure questions of law	☐ Abuse of discretion - evidentiary and case management rulings
☐ Competent substantial evidence - findings of fact	☐ Mixed - facts reviewed for support, law reviewed de novo
☐ Fundamental error - unpreserved issues	☐ Harmless error - the State's burden once error is shown

TABLE OF AUTHORITIES		
AUTHORITY CITED	TYPE	PAGES WHERE CITED

e.g. State v. Holloway, 12 Clw. App. 118 (2024) | Case | 4, 9-11

CERTIFICATIONS

- ☐ This brief complies with the page limit
- ☐ A copy has been served on all parties
- ☐ Oral argument is requested
- ☐ Every factual assertion is supported by a record citation
- ☐ The appendix is filed with this brief
- ☐ This brief raises no issue not preserved below, except as noted

CERTIFICATE OF SERVICE AND COMPLIANCE: I certify that this brief complies with the formatting requirements of this Court and that a copy has been furnished to all parties of record on the date written below.

COUNSEL OR SELF-REPRESENTED PARTY Bar number if an attorney PRINTED NAME	e.g. Grant Whitlow DATE e.g. 09/10/26	APPELLATE CLERK Brief filed PRINTED NAME	e.g. P. Nakamura, Deputy Clerk DATE e.g. 09/10/26
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